

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 14, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing.

[CA] Minutes from Regular Meeting of the Governing Body on May 24, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2022. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located northeast of the intersection of Dell Range Boulevard and Whitney Road. Seth Lloyd, Planning & Development Department, provided a staff report and advised the area sought to be annexed contains 18 acres of land to be known as Meadowlark Estates for mixed use development of commercial and residential dwellings. Mr. Lloyd provided details relating to compliance of annexation criteria. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE – 3rd READING – Amending Section 5.12.030, Licenses and Permits-Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4365)

ORDINANCE – 3rd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming (delivery). Mr. Roybal moved to approve on third and final reading,

seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. (#4366)

ORDINANCE –3rd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming (restaurant). Mr. Roybal moved to approve on third & final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4367)

ORDINANCE –3rd READING – Repealing Chapter 2.52, Personnel Commission, and creating a new Chapter 2.52, Personnel System, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Seth Lloyd, CPEA Board Member, advised that although there are concerns that still remain with the proposed changes to Chapter 2.52 and Chapter 2.92, members of the CPEA support the proposed substitutes. Dr. Rinne moved to approve on third and final reading, seconded by Mr. White. Dr. Rinne moved to amend by substitute dated June 2, 2021, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel voting “no”. (#4368)

ORDINANCE –3rd READING – Repealing Chapter 2.92, Personnel System, and creating a new Chapter 2.92, Administrative Hearing Procedure, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated June 2, 2021, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel voting “no”. (#4369)

ORDINANCE –3rd READING – Granting a non-exclusive franchise to Visionary Communications, Inc., within the rights-of-way of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. (#4370)

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) to align the UDC fee schedule with the fee adoption practices of the City. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4371)

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located north of Pershing Boulevard, west of Christensen Road. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4372)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to MR Medium-Density Residential for land located north of Pershing Boulevard, west of

Christensen Road. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4373)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located east of and including South Greeley Highway (US 85), north of Chalk Bluff Road. Betsey Hale, Cheyenne Leads, expressed support and appreciation to city staff for their efforts on the proposed annexation. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated June 3, 2021, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#4374)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-2 Agricultural to AG Agricultural, LI Light Industrial, and HI Heavy Industrial for land located east of South Greeley Highway (US 85), north of Chalk Bluff Road. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4375)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Seth Lloyd, Planning and Development Department, provided an update and explained the applicant has experienced a delay in receiving approval from Laramie County relating to the legal description of the property and requested a postponement to allow the applicant time to obtain approval from the County. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone to June 28, 2021, seconded by Mr. White. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone to June 28, 2021, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4376)

ORDINANCE – 3rd READING – Appropriating moneys for the City of Cheyenne, Wyoming for various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2021 and ending June 30, 2022. Mr. White moved to approve on third and final reading, seconded by Mr. Segrave. Mr. White moved to amend by substitute dated June 10, 2021, seconded by Mr. Segrave. Charles Bloom, Planning and

Development Director, explained that following discussion with the Compliance Director, it was determined the proposed code enforcement officer position should be moved to the Compliance Division rather than the Planning and Development Department. Upon inquiry, Mr. Bloom reported the code enforcement officer would primarily perform enforcement duties relating to violations of the Unified Development Code (UDC) but may also assist in other code enforcement duties as necessary. It was noted that upon approval, the position will be posted and filled when a suitable candidate has been identified. Mr. White moved to amend the amendment by removing the position from the Planning and Development Department and placing it in the Compliance Division's budget, seconded by Mr. Segrave. Motion to amend the substitute carried. Voting "yes" – all members of the governing body. Motion to amend by substitute as amended carried. Voting "yes" – all members of the governing body. Discussion included concern with refilling positions that were a part of the fiscal year 2020 reduction in force, noting uncertainty with the city's financial future. Concern was voiced regarding management and enforcement of UDC and City Code requirements. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Cook, Mr. Johnson and Dr. Rinne voting "no". (#4377)

ORDINANCE –2nd READING – Creating a new Chapter 2.80, Urban Renewal Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) to create the Urban Use Overlay District. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE –2nd READING – Creating Section 13.04.141, Fee Assessment on Gross Revenues, of Chapter 13.04, Board of Public Utilities, of Title 13, Public Utilities Generally, of the Code of the City of Cheyenne, Wyoming. Brad Brooks, BOPU Director, requested clarification on a minor language correction involving the ordinance entitlement. Mayor Collins confirmed the corrections are anticipated to be considered through a substitute ordinance. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated June 2, 2021, seconded by Mr. White. Motion to amend carried. Voting "yes" – all members of the governing body. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson and Mr. Laybourn voting "no".

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of and adjacent to the intersection of Dell Range Boulevard and Whitney Road – referred to Public Services Committee. (SPONSOR – DR. RINNE)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU Mixed Use and County LR Low Density Residential to CB Community Business, LR Low-Density Residential, and MR Medium-Density Residential for land located northeast of and adjacent to the intersection of Dell Range Boulevard, west of Whitney Road – referred to Public Services Committee. (SPONSOR – DR. RINNE)

ORDINANCE –1st READING – Creating a new Section 8.60.210, Liens, of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee (SPONSOR – MR. LAYBOURN)

ORDINANCE –1st READING – Creating a new Section 12.04.240, Liens, of Chapter 12.04, Streets, Sidewalks, and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee (SPONSOR – MR. LAYBOURN)

ORDINANCE –1st READING – Creating a new Section 15.24.030, Liens, of Chapter 15.24, Dangerous Building Code, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee (SPONSOR – MR. LAYBOURN)

ORDINANCE –1st READING – Amending various sections of Chapter 5.04, Business Licenses Generally, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee (SPONSOR – MR. SEGRAVE)

ORDINANCE –1st READING – Amending various sections of Chapter 5.52, Massage Establishments, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (SPONSOR – MR. SEGRAVE)

ORDINANCE –1st READING – Amending various sections of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (SPONSOR – MR. SEGRAVE)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the fiscal year beginning July 1, 2021 and ending June 30, 2022. Motion (per Consent Agenda) carried. (#6148)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2021 and ending June 30, 2022. Motion (per Consent Agenda) carried. (#6149)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$16,953.97 pursuant to Wyo. Stat. §16-4-502 (BOPU uncollectible debts). Motion (per Consent Agenda) carried. (#6150)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Saddle Ridge, 16th Filing, a plat of a portion of Section 25, Township 14 North, Range 66 West, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located north of Pershing Boulevard, west of Christensen Road). Motion (per Consent Agenda) carried. (#6151)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Bison Business Park, 2nd Filing, a plat of a portion of Sections 32 and 33, Township 13 North, Range 66 West, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located east of South Greeley Highway [US 85], north of Chalk Bluff Road). Motion (per Consent Agenda) carried. (#6152)

[CA] RESOLUTION – Amending Resolution Nos. 5934 and 5998 pertaining to adoption of a revised Cheyenne-Laramie County Board of Health Fee Schedule for inspection services, permit fees, and other various services – referred to Finance Committee. (SPONSOR – MR. WHITE)

[CA] RESOLUTION – Authorizing the filing of an application with the Federal Transit Administration for federal transportation assistance authorized by Title 49, United States Code, Section 5339 – referred to Finance Committee. (SPONSOR – MR. ROYBAL)

[CA] RESOLUTION – Accepting a grant in the amount of \$318,375.00 from the Corporation for National and Community Service for the City of Cheyenne, Office of Youth Alternatives, Foster Grandparent Program – referred to Finance Committee. (SPONSOR – MR. ROYBAL)

[CA] RESOLUTION – Pursuant to Wyoming Statute §15-9-106 Finding and Declaring Parts of the City of Cheyenne as Blight and authorizing the redevelopment thereof – referred to Public Services Committee. (SPONSOR – MR. SEGRAVE)

[CA] Preliminary Plat for Meadowlark Estates, 2nd Filing, a replat of Tract 1 and a portion of Tracts 2-9 of Meadowlark Estates, Laramie County, Wyoming (located northeast of the intersection of Dell Range Boulevard and Whitney Road – referred to Public Services Committee.

[CA] Preliminary Plat for The View, a replat of Tract 1, Park Estates, 4th Filing and Lot 20, Block 4, Park Estates, Laramie County, Wyoming (located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive – referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne and WJE, LLC, Cheyenne, WY, for development fees for Saddle Ridge 16th Filing, final plat. Motion (per Consent Agenda) carried. (#7349)

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Community Recreation and Events Department, and Brian Chalstrom D/B/A Putt Hutt, for premises used as a miniature golf course in Lions Park. (Revenue to the City) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Casper, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Laramie, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Douglas, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Torrington, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance – referred to Finance Committee.

[CA] Memorandum of Understanding between the Town of Hulett, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance – referred to Finance Committee.

[CA] Memorandum of Understanding between Johnson County, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance – referred to Finance Committee.

[CA] City Contract No. 150, Notice of Renewal of Lease Number 57-82HW-1-0171 from the United States Department of Agriculture, Agricultural Research Service, to lease the High Plains Grasslands Research Station. Motion (per Consent Agenda) carried. (#150)

Contract modification #1 to Contract #7256 between the City of Cheyenne and Dan Hart Patrol Service, LLC, for the Happy Jack Landfill Phase 2, Cells 1, 2 and 3 Excavation Earthworks project for additional liner & shipping cost for the leachate trench (Solid Waste Fund). Mr. Roybal moved to approve in an amount not to exceed \$310,000.00, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#7256)

Contract modification #2 to Contract #7258 between the City of Cheyenne and Northwest Linings & Geotextile Products Inc., for the Happy Jack Landfill Phase 2, Cells 1, 2 and 3 Excavation Earthworks project for a force majeure cost increase for unprecedented condition in the polypropylene and resin market (Solid Waste Fund). Mr. Roybal moved to approve in an amount not to exceed \$77,861.52, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#7258)

[CA] Contract modification #1 to Contract #7319 between the City of Cheyenne and KLJ Engineering for mapping and surveying services for the Landfill and Compost Facility. (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract amendment #1 to Contract #7239 between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, and Summit Engineering for the East Park Greenway Underpass and Drainage Plan. (MPO Federal Funds) – referred to Finance Committee.

[CA] Consideration of Bid #S-19-21 for a contract between the City of Cheyenne and Ameri-Tech HVAC Services, Inc., for the HVAC and Mechanical Systems Maintenance Project. (Civic Center Fund, Fleet Maintenance Fund, General Fund, Solid Waste Fund, Ice & Events Center Fund, Special Purpose Option Tax and 1% Sales Tax 2019-2022) – referred to Finance Committee.

[CA] Consideration of Bid #E-28-21 for furnishing three (3) new 2021-2022 cab and chassis (low cab forward/cabover) with 40-yard front loader refuse collection body installed, for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-29-21 for furnishing one (1) new 2021-2022 twin-screw diesel powered cab and chassis, for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-30-21 for furnishing three (3) new current in production 2021-2022 solid waste transfer trailers, for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-31-21 for furnishing one (1) new 2021-2022 front end wheel loader with less than 10 hours (Transfer Station), for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-32-21 for furnishing one (1) new 2021-2022 front end wheel loader with less than 10 hours (Compost Facility), for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-33-21 for furnishing one (1) new 2021-2022 portable trommel compost, topsoil screen plant, for the City of Cheyenne, Sanitation/Compost Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-34-21 for furnishing one (1) new 2021-2022 horizontal mobile wood waste grinder, for the City of Cheyenne, Sanitation/Compost Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-36-21 for furnishing one (1) new 2021-2022 1 ton, regular cab, full size pickup truck, with plow, for the City of Cheyenne, Community Recreation and Events Department (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-38-21 for furnishing one (1) new 2021-2022 15 passenger van, for the City of Cheyenne, Community Recreation and Events Department (2015-2018 1% Sales Tax and Insurance Claims) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne, and CenturyLink, Littleton, CO, to relocate CenturyLink owned fiber optic utilities in preparation for an upcoming construction project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Retail liquor license transfer of location application filed with the City Clerk's Office for Poor Richard's, from 2233 E. Lincolnway to 1808 O'Neil Ave., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Retail liquor license transfer of ownership application filed with the City Clerk's Office for ARCHCO Albany, LLC d/b/a Albany Restaurant, Bar, and Package Liquor, 1506 Capitol Ave., Cheyenne, Wyoming (license currently held by Albany, Inc. d/b/a Albany Restaurant, Bar and Liquormart). Motion (per Consent Agenda) carried.

[CA] Bar and grill liquor license application filed with the City Clerk's Office for Capitol Cuisine LLC d/b/a Ike's Bar & Grill, 122 West 6th St., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the July 15, 2021 Wyoming Association of Municipalities Summer Convention Business Meeting to be held in Cheyenne, Wyoming – referred to Finance Committee.

Announcement was made that a Calcutta, benefitting bona fide charities, will be held Thursday, June 17, 2021 beginning at 6:00 p.m. at Alf's Pub, 1622 E. 19th Street, Cheyenne, Wyoming, in conjunction with the USSSA 2021 Randy Weiss 36 Hour Softball Tournament (10% of proceeds go to bona fide charities).

Under other business:

Mr. White expressed appreciation to Jeanne Vetter, Greenway and Parks Planner, and Mr. Laybourn for all their work on the Greenway over the years and for the recent celebration held marking the 30-year anniversary of the Greenway.

Mr. Segrave expressed appreciation to City Directors and Robin Lockman, City Treasurer, for the hard work and informative dialog involving the budget approval process.

Mr. Johnson expressed appreciation to Jason Sanchez, Deputy Community Recreation and Events Director, for his efforts in making sure the splash pad is safe and ready for use. He provided information relating to the efforts and importance of regulation of use specifically during Fridays on the Plaza.

Dr. Aldrich announced Council members from Ward III will be holding a Council and Coffee event on Saturday, June 19th at Dazbog Coffee from 9-11 a.m. 3911 E. Pershing Blvd., Suite A.

Mayor Collins expressed appreciation to city staff for their efforts and work during the budget process.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:51 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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